

1963 CHAPTER 20

An Act to empower the Minister of Education to make provision by order (otherwise than in accordance with section 89 of the Education Act 1944) with respect to the remuneration of teachers; and for purposes connected therewith. [10th July 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power to make orders as to remuneration.

1.—(1) In relation to any of the descriptions of teachers specified in Schedule 1 to this Act, the Minister may by order make provision for securing that the remuneration of teachers of that description shall be determined, and remuneration paid to them by local education authorities, in accordance with the scales and other provisions contained in the relevant report as amended by the order.

(2) In this section “the relevant report”, in relation to the description of teachers specified in paragraph 1, paragraph 2 or paragraph 3 of Schedule 1 to this Act, means the report specified in the corresponding paragraph of Schedule 2 to this Act (as amended, in the case of the report specified in paragraph 1 or paragraph 2 of the said Schedule 2, by the amendments specified in that paragraph).

(3) Any amendments of the relevant report which, with respect to any of those descriptions of teachers, are contained in an order under this section may be either by way of substitution for, or by way of the deletion or variation of, or addition to, any of the scales or other provisions contained in the relevant report, or contained in that report as amended by any previous order under this section which is for the time being in force; and in subsection (1) of this section the reference to the relevant report as amended by the order shall be construed accordingly.

(4) Every order made under this section in relation to any description of teachers shall include provision for securing that the remuneration payable to any teacher of that description in respect of any period to which the order applies is not less than it would have been if the order had not been made.

(5) Any order under this section which is made before the 1st August 1963, and provides that it shall take effect as from the 1st April 1963, shall be deemed to have had effect as from the last-mentioned date, and the remuneration of teachers to whom the order applies shall be deemed to have been payable accordingly.

(6) No order (except an order which only revokes a previous order) shall be made under this section after the 31st March 1965.

(7) Any order made under this section in relation to the description of teachers specified in any of the paragraphs of Schedule 1 to this Act may include provision for revoking the order or orders specified in the corresponding paragraph of Schedule 3 to this Act; and the proviso to section 111 of the Education Act 1944 (which relates to the revocation and variation of orders and directions under that Act) shall not apply to the revocation of any order by virtue of this subsection.

(8) The power to make orders under this section shall be exercisable by statutory instrument; and any statutory instrument containing such an order shall be subject to annulment in pursuance of a resolution of either House of Parliament.

2.—(1) This Act may be cited as the Remuneration of Teachers Act 1963. Short title,
construction
and extent.

(2) This Act shall be construed as one with the Education Acts 1944 to 1962.

(3) This Act shall not extend to Scotland or to Northern Ireland.

SCHEDULES

SCHEDULE 1

Section 1.

DESCRIPTIONS OF TEACHERS

1. Full-time teachers in primary and secondary schools maintained by local education authorities.

2. Full-time teachers in establishments for further education (other than farm institutes) maintained by local education authorities.

3. Full-time teachers employed as members of the teaching staff of farm institutes maintained by local education authorities, or as teachers of agricultural subjects (including horticultural and related subjects) on the staff of local education authorities.

SCHEDULE 2

Section 1.

REPORTS, AND AMENDMENTS TO REPORTS, OF BURNHAM COMMITTEES

1.—(1) Report of the Burnham Committee on Scales of Salaries for Teachers in Primary and Secondary Schools, England and Wales, 1961.

(2) The amendments set out in the Schedule to the Remuneration of Teachers (Primary and Secondary Schools) Amending Order 1962.

2.—(1) Report of the Burnham Committee on Scales of Salaries for Teachers in Establishments for Further Education, England and Wales, 1961.

SCH. 2 (2) The amendments set out in the Schedule to the Remuneration of Teachers (Further Education) Amending Order 1962.

3. Report of the Committee on Scales of Salaries for the Teaching Staff of Farm Institutes and for Teachers of Agricultural (including Horticultural) Subjects, England and Wales, 1961.

Section 1.

SCHEDULE 3

EXISTING ORDERS

1. The Remuneration of Teachers (Primary and Secondary Schools) Order 1961, and the Remuneration of Teachers (Primary and Secondary Schools) Amending Order 1962.

2. The Remuneration of Teachers (Further Education) Order 1961, and the Remuneration of Teachers (Further Education) Amending Order 1962.

3. The Remuneration of Teachers (Farm Institutes) Order 1961.



1963 CHAPTER 21

Education (Scotland) Act 1963

ARRANGEMENT OF SECTIONS

Section

1. Establishment of board to conduct examinations, etc.
2. Scope of regulations as to teachers' salaries.
3. Financing of pensions for widows, etc., of teachers.
4. Membership of education committees and sub-committees.
5. Expenses.
6. Citation, construction and extent.

An Act to provide for the establishment of a board in Scotland for the purpose of discharging certain functions relating to examinations for pupils receiving secondary education and others; to amend the provisions of the Education (Scotland) Act 1962 with respect to the scope of regulations prescribing scales of salary for teachers and to the provision of pensions for widows, widowers, children and dependants of teachers; to amend certain provisions of the Local Government (Scotland) Act 1947 relating to membership of education committees and of sub-committees thereof; and for purposes connected with the matters aforesaid.

[10th July 1963]